

2013 WL 5926425 (N.Y.Sup.) (Trial Pleading)
Supreme Court of New York.
Bronx County

Brandon CULLINS and Brandon Parker, Plaintiffs,

v.

THE CITY OF NEW YORK, New York City Police Department, Police Officer **Santos Collazo**, Shield No.: 021911 and police officers whose names are yet unknown, Defendants.

No. 0306409-2013.
October 24, 2013.

Summons

[Elliot H. Fuld](#), 930 Grand Concourse-Suite 1G, Bronx, NY 10451, (718) 410-4111.

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if, the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within twenty (20) days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: October 24, 2013

ELLIOT H. FULD

930 Grand Concourse-Suite 1G

Bronx, NY 10451

(718) 410-4111

VERIFIED COMPLAINT

BRANDON CULLINS and BRANDON PARKER, by their attorney, Elliot H. Fuld, complain of the defendants and allege, upon information and belief as follows:

1. BRANDON CULLINS and BRANDON PARKER were, at the times Of the incident described in this Complaint, residents of the City and State of New York, County of Bronx.
2. POLICE OFFICER **SANTOS COLLAZO**, SHIELD NO.: 021911 and unnamed police officers were and at all times stated herein and upon information and belief, are police officer with the New York City Police Department with regards to the incidents described herein.

3. POLICE OFFICER **SANTOS COLLAZO**, SHIELD NO.: 021911 and unnamed police officers were acting within the scope of their employment with the New York City Police Department with regards to the incidents described herein.

4. That at all times stated herein, POLICE OFFICER **SANTOS COLLAZO**, SHIELD NO.: 021911 and these unnamed police officers, as employees of the New York City Police Department, were acting as agents, servants and/or employees of THE CITY OF NEW YORK.

5. THE CITY OF NEW YORK at all times herein mentioned, was and still is a municipal corporation, duly organized and existing in accordance with the laws of the State of New York.

AS AND FOR A FIRST CAUSE OF ACTION

6. On or about March 5, 2013 going into March 6, 2013, police officers forcibly seized and detained the Plaintiffs herein in the area of 166th and 167th Street and Morris and College Avenues in Bronx County.

7. After detaining the Plaintiffs, police officers arrested the Plaintiffs charging them with the misdemeanor crime of trespass. Plaintiffs were handcuffed so severely that they have possible permanent nerve damage to digits on both hands.

8. Police officers kept Plaintiff in custody for approximately ten (10) hours.

9. At the time of the arrest and detention those police officers who were present were aware or should have been aware that Plaintiffs did not commit that crime.

10. The arrest and detention of the Plaintiffs by those officers and the filing of criminal charges was without probable cause and without basis in law or in fact.

11. On March 6, 2013, the Bronx County District Attorney's Office refused to prosecute Plaintiff because, after investigating the matter, its conclusion was that no crime was either observed or committed. (See Exhibit "A" attached-Affidavit of Assistant District Attorney Michelle Villaronga declining prosecution). Yet Plaintiffs remained in custody for several hours thereafter until the police permitted Plaintiff's release.

12. On or about March 8, 2013, Plaintiffs, by counsel, served upon the Comptroller of the City of New York, Notices of Claim as required by the General Municipal Law.

13. That more than thirty (30) days have elapsed since the service of that Claim and the adjustment or payment thereof has been neglected or refused.

14. That this action is being commenced within one year and ninety days after the happening of the event upon which the claim is based, which cause of action accrued upon the arrest of March 5, 2013 and the declining of prosecution of March 6, 2013.

15. As a result of the false arrest of Plaintiff by defendants, Plaintiffs demands judgment against the Defendants and was damaged in the amount of Two Hundred Fifty (\$250,000.00) Dollars.

AS AND FOR A SECOND CAUSE OF ACTION

16. Plaintiffs repeat all the allegations contained in paragraphs "1" through "15" inclusive as though more fully set forth herein.

17. As a result of Defendants' actions, Plaintiffs were falsely imprisoned and suffered injuries as described aforesaid.

18. That at the time of Plaintiffs' imprisonment, Defendants, their agents, servants and/or employees knew or should have known that Plaintiffs should not have been incarcerated.

19. That the Defendants, their agents, servants and/or employees failed, refused or neglected to undertake any measures which could have resulted in Plaintiffs' release.

20. That as a result of Defendants' action, Plaintiffs was compelled to, inter alia, lose school attendance day as well as loss of property (school knapsacks) which were never recovered.

21. In view of the foregoing, Plaintiff has been damaged in the amount of Two Hundred Fifty (\$250,000.00) Dollars.

AS AND FOR A THIRD CAUSE OF ACTION

22. Plaintiffs repeat all the allegations contained in paragraphs "1" through "21" inclusive as though more fully set forth herein.

23. The Defendants, their agents, servants and/or employees, were acting "under color of state law" as defined in [42 U.S.C. 1983 et seq.](#) in committing the acts alleged herein.

24. In performing that acts as aforesaid, the Defendants deprived Plaintiffs of their civil and constitutional rights as defined by [42 U.S.C. 1983 et seq](#) and the law interpreting that section.

25. Defendants were operating under a police department policy of having a quota for making arrests, whether justified or unjustified.

26. Defendants had made and continue to make illegal arrests to satisfy those quota requirements.

27. The municipal Defendants herein were aware, sanctioned and encouraged the individual Defendant to make such arrests as the one in this case to satisfy these quotas.

28. As a result of the foregoing, the Plaintiffs have been damaged in the amount of Two Hundred Fifty (\$250,000.00) Dollars.

WHEREFORE, Plaintiffs demand of the Defendants as follows:

- a. On the First Cause of Action, the sum of \$250,000.00; and
- b. On the Second Cause of Action, the sum of \$250,000.00; and
- c. On the Third Cause of Action, the sum of \$250,000.00; and
- d. Punitive damages in the sum of \$250,000.00.

Dated: October 24, 2013

Elliot H. Fuld

Attorney for Plaintiffs

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